

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 26687/17

-----X
SHAQUILLE D. CARRINGTON,

**AMENDED VERIFIED
COMPLAINT**

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MERO, TAX ID
95413, POLICE OFFICER JORGE FLORES, SHIELD
NO. 7680 OF THE 44TH PRECINCT and JOHN AND JANE
DOE POLICE OFFICERS OF THE 44TH PRECINCT,
Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, POLICE OFFICER MERO, TAX ID 954131 and JOHN AND JANE DOE POLICE OFFICERS OF THE 44TH PRECINCT were and still are employed with the New York City POLICE DEPARTMENT.

5. That at all time herein mentioned, POLICE OFFICER MERO, TAX ID 954131 and JOHN AND JANE DOE POLICE OFFICERS OF THE 44TH PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

6. That at all times herein mentioned, POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

7. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

8. On or about July 6, 2016, at approximately 9:30 p.m., Plaintiff SHAQUILLE D. CARRINGTON was lawfully at East 165th Street and Woodycrest Avenue, in the County of Bronx, State of New York.

9. Plaintiff was waiting for take-out food at said time and location.

10. At said time and place plaintiff was arrested by the defendants.

11. Plaintiff was then taken to the 44th precinct for approximately 5 hours.

12. Plaintiff was then given a desk appearance ticket which directed him to appear in court on September 15, 2016.

13. All charges were dismissed after trial on November 17, 2016.

14. The individual Defendants, POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law,

thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER THE
FOURTH, FIFTH, SIXTH, AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON FALSE ARREST AND IMPRISONMENT

15. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

16. That on or about July 6, 2016, at approximately 9:30 p.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

17. That on or about July 6, 2016, at approximately 9:30 p.m., Defendants POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT, jointly and severally in their capacity as police officers, wrongfully stopped, handcuffed, and seized the Plaintiff about his person, causing him physical

pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

18. That on or about July 6, 2016, Defendants POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty and then took him into custody to the 44th Precinct.

19. Plaintiff was thereafter held at the 44th Precinct, for several hours.

20. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officers, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

21. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

22. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendants POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

23. As a result of the aforementioned actions, Defendants POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT deprived Plaintiff of the right to be free from unreasonable search and seizures

secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

24. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth, Fifth and Fourteenth Amendments.

25. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

26. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

27. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986.

SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH, SIXTH, AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION PREDICATED UPON THE MALICIOUS PROSECUTION OF
PLAINTIFF

28. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

29. Upon information and belief, on or about July 6, 2016 and from that time until the dismissal of charges, which was favorable termination for the accused, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New

York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

30. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.

31. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America, the Fourth, Fifth, Sixth, and Fourteenth Amendment.

32. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments and under New York State law.

33. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments and New York State law.

34. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.

35. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.

36. Plaintiff has suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

37. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State law.

THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983

38. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

39. All of the acts and omissions by the individual Defendants, POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

40. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

41. Defendants POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT arrested, incarcerated and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

42. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

43. On or about July 6, 2016, Defendants did stop, seize, search, assault and commit a battery and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive

manner.

44. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants' possessing probable cause to do so.

45. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from illegal search and seizure.
- d. Freedom from false arrest.
- e. Freedom from malicious prosecution.
- f. Freedom from the use of excessive force during the arrest process.
- g. Freedom from unlawful imprisonment.

46. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

47. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

48. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

FOURTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH, SIXTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON THE USE OF EXCESSIVE FORCE UPON
PLAINTIFF

49. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

50. That on or about July 6, 2017, at approximately 9:30 p.m., Defendants POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT, jointly and severally in his capacity as a police officer, wrongfully entered, stopped, handcuffed and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

51. As a result of the aforementioned actions, Defendant POLICE OFFICER MERO, TAX ID 954131 and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680 OF THE 44TH PRECINCT deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

52. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments.

53. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

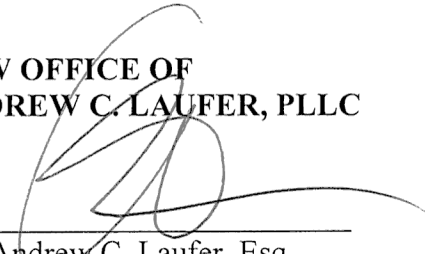
54. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

55. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
May 3, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 26687/17

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SHAQUILLE D. CARRINGTON,

Plaintiff,

-against-

VERIFICATION

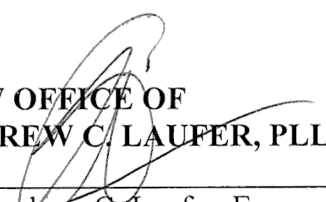
THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MERO, TAX ID
954131 and POLICE OFFICER JORGE FLORES, SHIELD
NO. 7680 OF THE 44TH PRECINCT and JOHN AND JANE
DOE POLICE OFFICERS OF THE 44TH PRECINCT,
Defendants,

-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New
York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the
plaintiff in the within action. That I have read the foregoing complaint and know the contents
thereof, and that the same are true to my knowledge, except as to the matters herein stated to be
alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports
maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that
the plaintiff does not reside in the County of New York, which is the county wherein this firm
maintains its office.

Dated: New York, New York
May 3, 2019


**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SHAQUILLE D. CARRINGTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MERO, TAX ID
954131 and JOHN AND JANE DOE POLICE OFFICERS OF
THE 44TH PRECINCT,

Defendants.
-----X

Index No.: 26687/17

SO-ORDERED
STIPULATION

Law Dept. # 2017-047196

IT IS HEREBY STIPULATED AND AGREED upon, by and between the undersigned
attorneys, that the plaintiff is permitted to amend the Summons and Verified Complaint to add
Police Officer Jorge Flores, Shield #7680, as a named defendant herein.

The new caption shall read as follows:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SHAQUILLE D. CARRINGTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MERO, TAX ID
954131, POLICE OFFICER JORGE FLORES, SHIELD #7680,
and JOHN AND JANE DOE POLICE OFFICERS OF
THE 44TH PRECINCT,

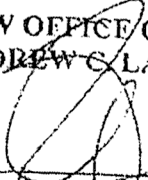
Defendants,
-----X

Index No. 26687-17

Plaintiff shall serve Police Officer Jorge Flores at the NYPD's 44th Precinct. *within 60 days*

Dated: New York, New York
May 1, 2019

LAW OFFICE OF
ANDREW C. LAUFER, PLLC


By: Andrew C. Laufer
Attorney for Plaintiff
255 West 36th Street, Suite 1104
New York, New York 10018
(212) 422-1020 Tel
(212) 422-1069 Fax

CORPORATION COUNSEL
OF THE CITY OF NEW YORK


By: Joshua Copperman
Attorney for Defendant(s)
100 Church Street
New York, New York 10007
(718) 620-1025 Tel
jcopperm@law.nyc.gov

So ordered: _____

5/22/19


HON. MITCHELL J. DANZIGER

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index: 26687 Year: 2017

SHAQUILLE D. CARRINGTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MERO, TAX ID 954131
and POLICE OFFICER JORGE FLORES, SHIELD NO. 7680
OF THE 44th PRECINCT and OFFICERS JOHN AND JANE
DOES POLICE OFFICERS OF THE 44th PRECINCT,

Defendants,

SUPPLEMENTAL SUMMONS & AMENDED VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for PlaintiffOffice and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated: _____

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on☐ **NOTICE OF SETTLEMENT**that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court aton _____ at _____ M.
Dated, _____

Yours, etc.

Law Office of Andrew C. Laufer